ncy Certificate and a Ship Energy Efficiency
Management Plan on board, in accordance with article 5 of the present Convention.
19 Refer to the Procedures for port State control, 2023 (resolution A.1185(33)).
RESOLUTION MEPC.403(83) (adopted on 11 April 2025)
AMENDMENTS TO THE 2022 GUIDELINES ON SURVEY AND CERTIFICATION
OF THE ENERGY EFFICIENCY DESIGN INDEX (EEDI)MEPC 83/17/Add.1
Annex 11, page 21
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6 Notwithstanding the requirements in paragraph 5 of this regulation, any port State
inspection may inspect whether the Ship Energy Efficiency Management Plan is duly
implemented by the ship in accordance with regulation 28 of this Annex.
Regulation 11
Detection of violations and enforcement
1 Parties shall cooperate in the detection of violations and the enforcement of the
provisions of this Annex, using all appropriate and practicable measures of detection and
environmental monitoring, and adequate procedures for reporting and accumulation of
evidence.
2 A ship to which this Annex applies may, in any port or offshore terminal of a Party, be
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SOURCE: MEPC.403(83).pdf
environmental monitoring, and adequate procedures for reporting and accumulation of
evidence.
2 A ship to which this Annex applies may, in any port or offshore terminal of a Party, be
subject to inspection by officers appointed or authorized by that Party for the purpose of
verifying whether the ship has emitted any of the substances covered by this Annex in violation
of the provision of this Annex. If an inspection indicates a violation of this Annex, a report
shall
be forwarded to the Administration for any appropriate action.
3 Any Party shall furnish to the Administration evidence, if any, that the ship has emitted
any of the substances covered by this Annex in violation of the provisions of this Annex. If it
is
practicable to do so, the competent authority of the former Party shall notify the master of th
e
ship of the alleged violation.
4 Upon receiving such evidence, the Administration shall investigate the matter and
may request the other Party to furnish further or better evidence of the alleged contravention.
If the Administration is satisfied that sufficient evidence is available to e nable proceedings
to
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SOURCE: MEPC.403(83).pdf
may request the other Party to furnish further or better evidence of the alleged contravention.
If the Administration is satisfied that sufficient evidence is available to e nable proceedings
to
be brought in respect of the alleged violation, it shall cause such proceedings to be taken in
accordance with its law as soon as possible. The Administration shall promptly inform the Party
that has reported the alleged violation, as well as the Organization, of the action taken.
5 A Party may also inspect a ship to which this Annex applies when it enters the ports
or offshore terminals under its jurisdiction, if a request for an investigation is received fro
m any
Party together with sufficient evidence that the ship has emitted any of the substances covered
by the Annex in any place in violation of this Annex. The report of such investigation shall be
sent to the Party requesting it and to the Administration so that the appropriate action may be
taken under the present Convention.
6 The international law concerning the prevention, reduction and control of pollution of
the marine environment from ships, including that law relating to enforcement and safeguards,
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SOURCE: MEPC.403(83).pdf
taken under the present Convention.
6 The international law concerning the prevention, reduction and control of pollution of
the marine environment from ships, including that law relating to enforcement and safeguards,
in force at the time of application or interpretation of this Annex, applies, mutatis mutandis,
to
the rules and standards set forth in this Annex.
Chapter 3 – Requirements for control of emissions from